

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 7, 2026 TIME: 8:30 A.M.

(Code Civ. Proc., section 2033.280, subd. (b).) The court also imposed monetary sanctions against plaintiffs in the amount of \$2,000.00, payable no later than April 24, 2026. (Code Civ. Proc., §§ 2030.290, subd. (c), 2033.280, subd. (c).)

On April 24, 2026, plaintiffs served amended responses to the requests for admissions, but failed to comply with the remainder of the court order. Defendants now move for terminating sanctions in the form of striking the second amended complaint against these defendants, or in the alternative, further monetary sanctions of \$6,000.00 (14 hours at \$375.00/hour).

Counsel for plaintiffs declares his clients served responses to the interrogatories and requests for production on July 1, 2026, but did not pay the sanctions until very recently (mistakenly believing the court's ruling became an order only upon counsel's compliance with CRC 3.1312 or Local Rule 3.108). He declares he sent the check on or about July 27, 2026. Counsel concedes his clients have not produced any documents yet, as "the process of going through the documents is taking a long time." (Eschen Declaration, ¶¶ 2-5.)

No. 26CV00545

LOPEZ-CISNEROS v. YANNONE

DEFENDANT'S MOTION TO STRIKE COMPLAINT

The motion is granted.

This is a motor vehicle collision case. Plaintiff claims defendant caused the December 30, 2024 collision on Lockwood Lane in Scotts Valley by speeding and using a cell phone while driving. Plaintiff states claims for negligence, negligence per se, and statutory liability pursuant to Vehicle Code sections 17150 et seq. ("permissive use doctrine").

Defendant seeks to strike plaintiff's claims for punitive damages on the ground he has failed to plead any cause of action supporting malice, oppression, or fraud.

California Code of Civil Procedure section 436, provides: "[t]he court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." "Motions to strike can be used to reach defects in or objections to pleadings that are not challengeable by demurrer. Complaints, cross-complaints, answers and demurrers are all subject to a motion to strike (Code Civ. Proc., § 435, subd. (a)(2)).¹ The grounds for a motion to strike

¹ All statutory references are to the Code of Civil Procedure, unless otherwise stated.

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must appear on the face of the pleadings under attack, or from matter which the court may judicially notice. (§ 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 Cal.App.4th 1014, 1032.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements that the defendant is guilty of oppression, fraud or malice. (§ 3294(a); *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.)

“Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at 725.) “As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (*Ibid.*) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (*Ibid.*) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

The Court finds plaintiff’s allegations are insufficient to support any claim for punitive damages; all that is alleged is negligence. (Complaint, ¶¶ 10-39.) Plain unintentional carelessness, characterized as negligence or recklessness, is not sufficient to support punitive damages. (*Nolin v. National Convenience Stores, Inc.* (1979) 95 Cal.App.3d 279, 285-286 [“Conduct classified only as unintentional carelessness, while it may constitute negligence or even gross negligence, will not support an award of punitive damages”]; *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 32 (“When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice”].)